

INSLEE, C. J., concurring

SUPREME COURT OF THE UNITED STATES

DANNYBEC, SPEAKER OF THE HOUSE OF
REPRESENTATIVES *v.* ICOYXTE

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED
STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

No. 26–6. Decided May 11, 2026

The petition for a writ of certiorari is denied.

CHIEF JUSTICE INSLEE, concurring in the denial of certiorari.

As this Court iconically said, “[W]e are a court of review, not of first view.” *Cutter v. Wilkinson*, 544 U. S. 709, 718, n. 7 (2005). Such a rule keeps this Court acting in its proper role that Congress and the Constitution charged us with. Just like how a petitioner attempted in a recent case, see *Odure v. Federal Election Commission*, 1 U. S. ____ (2026) (*per curiam*), Petitioner brings this case all the way up to the highest court of the land, short-circuiting the District Court. But, mindful of our review-focused role, I see no “reason why this challenge [] cannot be first brought in the District Court.” *Id.*, (slip op., at 2). I therefore vote to deny the petition.